

VCU321645 Loza, Marisela vs. Addiction Research and Treatment, Inc., a Corporation

County: tulare

Division: Civil Law and Motion

Department: 9

Hearing date: 2026-07-27

Motion: Motion for Coordination

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Re: Loza, Marisela vs. Addiction Research and Treatment, Inc., a Corporation

Case No.: VCU321645

Date: July 27, 2026

Time: 10:00 A.M.

Dept. 9-The Honorable Nathan D. Ide

Motion: Motion for Coordination

Tentative Ruling: To grant the motion, to set Contra Costa County as the coordinate site and the 1st District Court of Appeal as having appellate jurisdiction.

Facts

On May 20, 2026, the Judicial Council of California, in response to a petition by Petitioner Ferdinand Parcasio, for coordination of complex PAGA and class actions detailed below, issued an order authorizing this Court, pursuant to Code of Civil Procedure section 404 and rule 3.524, to determine if the matters are complex and, if so, whether coordination is appropriate.

The Presiding Judge of this Court thereafter, set this matter for July 27, 2026, 10:00 am, in Dept. 9.

Cases at Issue

The following cases are at issue via this motion:

Loza v. Addiction Research and Treatment, Inc., Tulare County Superior Court, Case No. VCU321645, filed on May 19, 2025, and assigned to Hon. Bret Hillman, Department 2 ("Loza Class Action");

Loza v. Addiction Research and Treatment, Inc., Tulare County Superior Court, Case No. VCU323614, filed on July 11, 2025, and assigned to Hon. Bret Hillman, Department 2 ("Loza PAGA Action");

Parcasio v. BAART Programs, Inc., et al., Contra Costa County Superior Court, Case No. C25-02285, filed on August 11, 2025, and assigned to Hon. Julia Campins, Department 10 ("Parcasio PAGA Action");

Casey Christopher Hutton v. MedMark Treatment Centers-Fresno West, Inc., et al, Fresno County Superior Court, Case No. 25CECG04037, filed on August 27, 2025, and assigned to Hon. D. Tyler Sharpe, Department 501 ("Hutton Class Action");

Casey Christopher Hutton v. MedMark Treatment Centers-Fresno West, Inc., et al, Fresno County Superior Court, Case No. 25CECG05047, filed on October 27, 2025, and assigned to Hon. D. Tyler Sharpe, Department 501 ("Hutton PAGA Action");

It appears to the Court that none of these matters are presently set for trial.

Loza Class Action - VCU321645

On May 19, 2026, Plaintiff Loza filed a complaint against Defendant Addiction Research and Treatment, Inc. ("Defendant ART") for the following:

1. Unfair Competition in Violation of Bus. & Prof. Code §§ 17200;
2. Failure to Pay Minimum Wages in Violation of Lab. Code §§ 1194, 1197 & 1197.1;
3. Failure to Pay Overtime Wages in Violation of Lab. Code § 510;
4. Failure to Provide Required Meal Periods in Violation of Cal. Lab. Code §§ 226.7 & 512 And The Applicable IWC Wage Order;
5. Failure to Provide Required Rest Periods In Violation of Lab. Code §§ 226.7 & 512 and the Applicable IWC Wage Order;
6. Failure To Provide Accurate Itemized Statements in Violation of Lab. Code § 226;
7. Failure To Reimburse Employees for Required Expenses in Violation of Lab. Code § 2802;
8. Failure To Provide Wages When Due in Violation of. Lab. Code §§ 201, 202 And 203; And,
9. Failure To Pay Sick Pay Wages in Violation of. Lab Code §§ 201-203, 233, 246.

In this matter, Plaintiff Loza is represented by Blumenthal Nordrehaug Bhowmik De Blouw LLP.

The matter was filed as complex.

The Court notes that Defendant ART's motion to compel arbitration was denied on December 12, 2025.

Loza PAGA Action - VCU323614

On July 11, 2026, Plaintiff Loza filed this matter against Defendant ART for a single cause of action under for civil penalties Pursuant to Labor Code § 2699 based on the following violations:

- (1) pay overtime;
- (2) provide meal periods;
- (3) provide rest periods;
- (4) pay minimum wages;
- (5) timely pay wages upon termination;
- (6) timely pay wages during employment;
- (7) provide compliant wage statements;
- (8) pay sick pay; and
- (9) reimburse necessary business expenses.

Plaintiff Loza is also represented by the same firm, Blumenthal Nordrehaug Bhowmik De Blouw LLP, in this matter.

The Loza PAGA Action was not filed as complex and has not been deemed complex.

Parcasio PAGA Action - C25-02285

In this matter, filed August 11, 2025 in Contra Costa County, Plaintiff Ferdinand Parcasio brings claims against Defendant ART, as well as Defendants BAART Programs, Inc. Baymark Health Services, Inc. and Patrice Trisvan for civil penalties Pursuant to Labor Code § 2699 based on the following violations:

- (1) failed to pay overtime;
- (2) failed to provide meal periods;
- (3) failed to provide rest periods;

- (4) failed to pay minimum wages;
- (5) failed to timely pay wages upon termination;
- (6) failed to timely pay wages during employment;
- (7) failed to provide compliant wage statements;
- (8) failed to keep complete or accurate payroll records; and
- (9) failed to reimburse necessary business expenses.

Plaintiff Parcasio is represented by Lawyers for Justice, PC.

The Parcasio PAGA Action does not appear to have been filed as complex and has not been deemed complex.

Hutton Class Action - 25CECG04037

In this matter, filed August 27, 2025 in Fresno County, Plaintiff Christopher Hutton brings claims against Defendants MedMark Treatment Centers- Fresno West, Inc., MedMark Treatment Centers, Inc., MedMark Services, Inc., and BayMark Health Services, Inc. for the following:

- (1) failure to pay all wages earned for all hours worked and other compensable hours at the correct rates of pay,
- (2) failure to provide meal periods;
- (3) failure to provide rest breaks;
- (4) failure to reimburse necessary business expenses;
- (5) wage statement penalties;
- (6) waiting time penalties; and
- (7) unfair competition.

Plaintiff Hutton is represented by Spivak Law Firm and United Employees Group.

The Hutton Class Action was filed as complex.

Hutton PAGA Action - 25CECG05047

In this matter, filed October 27, 2025 in Fresno County, Plaintiff Hutton brings claims against Defendants MedMark Treatment Centers- Fresno West, Inc., MedMark Treatment Centers, Inc., MedMark Services, Inc., and BayMark Health Services, Inc. for civil penalties Pursuant to Labor Code § 2699 based on the following violations:

- (1) pay all wages;
- (2) provide all meal and rest periods;
- (3) pay premiums for unprovided meal and rest breaks;
- (4) reimburse necessary business expenses;
- (5) provide compliant wage statements;
- (6) timely pay wages during employment;
- (7) timely pay wages upon termination; and
- (8) maintain accurate records.

The Hutton PAGA Action does not appear to have been filed as complex and has not been deemed complex.

Plaintiff Hutton is represented by Spivak Law Firm and United Employees Group.

Authority and Analysis

Pursuant to Code of Civil Procedure section 404 and California Rules of Court, rule 3.524, the Judicial Council authorized the Tulare County Superior Court presiding judge to assign the matter to a judge "to sit as coordination motion judge to determine whether the included actions listed" in the order: (1) are complex, and if so, (2) whether coordination of those actions is appropriate. Further, pending the determination of whether coordination is appropriate, whether the stay any action being considered for or affecting any action being considered for coordination.

According to the order, if the coordination motion judge grants the petition for coordination, he or she must (1) recommend a particular superior court for the site of the coordination proceedings, pursuant to rule 3.530, and (2) select the reviewing court having appellate jurisdiction if the actions to be coordinate are within the jurisdiction of more than one reviewing court, pursuant to rule 3.505(a).

Code of Civil Procedure section 404 provides in pertinent part:

"When civil actions sharing a common question of fact or law are pending in different courts, a petition for coordination may be submitted to the Chairperson of the Judicial Council, by the presiding judge of any such court, or by any party to one of the actions after obtaining permission from the presiding judge, or by all of the parties plaintiff or defendant in any such action. A petition for coordination, or a motion for permission to submit a petition, shall be supported by a declaration stating facts showing that the actions are complex, as defined by the Judicial Council and that the actions meet the standards specified in Section 404.1."

Therefore, the Court must determine if the actions are complex and whether the actions are appropriate for coordination under section 404.1

Petitioner's Petition provides argument and the declaration of counsel in support of these two elements.

On July 14, 2026, Plaintiff Loza timely filed an opposition, arguing that the Petition does not meet the standard for coordination, as addressed below in further detail.

Complex

To determine whether a case is complex, the Court must consider whether the action is likely to involve (1) Numerous pretrial motions raising difficult or novel issues that will be time-consuming to resolve; (2) Management of a large number of witnesses or a substantial amount of documentary evidence; (3) Management of a large number of separately represented parties; (4) Coordination with related actions pending in one or more courts in other counties, states, or counties, or in a federal court; or (5) Substantial postjudgment judicial supervision. (CRC, Rule 3.400(b).)

In support, Petitioner states:

i. the cases will involve numerous pretrial motions raising difficult or novel legal issues, such as issues regarding the scope and implementation of PAGA which is a relatively recent and still evolving area of law and frequently raises previously unresolved legal questions;

ii. the cases will require the management of thousands of documents, including time records and payroll records for all aggrieved employees as defined by the complaints; policy documents issued by Defendants regarding, inter alia, hourly-paid employees' meal breaks, rest breaks, premium pay, overtime pay, and reimbursement procedures; and internal communications between Defendants' agents relating to the violations at issue;

iii. the cases will require depositions of several employees whom plaintiffs seek to represent;

iv. all three actions will require substantial post judgment supervision because courts will need to ensure that in the event uncashed checks result from a monetary judgment or settlement, the requirements of the newly amended Code of Civil Procedure section 384 are followed." (Declaration of Wilson ¶17.a.i-iv.)

To start, the Loza and Hutton Class Actions are provisionally deemed complex by Rule of Court, rule 3.400(c)(6).

All the Actions seek to prosecute claims on behalf of non-exempt employees across California based on allegations of violations of the Labor Code, with the Hutton Class Action seeking recovery under the Business and Professions Code for what are effectively derivative claims.

However, the Court does not find a specific identification of “difficult or novel legal issues” as to PAGA or “previously unresolved legal questions.” Petitioner cites to *Raines v. Coastal Pacific Food Distributors, Inc.* (2018) 23 Cal.App.5th 667, 677 as to the issue of “Whether a PAGA claim for a violation of section 226(a) requires the same showing of injury as an individual claim for statutory penalties under section 226(e).” However, *Gunther v. Alaska Airlines, Inc.* (2021) 72 Cal. App. 5th 334, 355-356 rejected this reasoning, noting that the enhanced penalties only apply when an employer “...fails to provide the employee a wage deduction statement” based on the plain statutory language. This appears to be the only “novel” legal issue specifically identified and the Court does not find it sufficient to warrant a “complex” label under the first factor.

As to the management of documents and witnesses, the Court agrees that these Defendants' will likely have a large number of percipient witnesses and applicable policies, as well as numerous wage and hour statements.

The Court agrees that the cases are likely to require depositions of several employees of Defendants.

Further, that class actions and PAGA claims require post judgment supervision with respect to full compliance with any judgment or settlement and disbursement of funds, including the supervision of the processing of the sum of uncashed checks to the cy pres recipient.

Therefore, the Court finds the Actions complex.

Coordination

Code of Civil Procedure section 404.1 provides:

“Coordination of civil actions sharing a common question of fact or law is appropriate if one judge hearing all of the actions for all purposes in a selected site or sites will promote the ends of justice taking into account whether the common question of fact or law is predominating and significant to the litigation; the convenience of parties, witnesses, and counsel; the relative development of the actions and the work product of counsel; the efficient utilization of judicial facilities and manpower; the calendar of the courts; the disadvantages of duplicative and inconsistent rulings, orders, or judgments; and, the likelihood of settlement of the actions without further litigation should coordination be denied.”

In support, the Petitioner notes judicial efficiency and economy, as well as convenience, as to coordinated discovery and depositions, including those of expert witnesses. (Declaration of Wilson ¶18.)

Further, that the Actions are pending in three counties and that a single judge hearing all law and motion provide a basis for coordination and will reduce the risk of inconsistent rulings. (Declaration of Wilson ¶19.) Further, that PMK depositions of the Defendants will, under a coordinated proceeding, be more efficient and require fewer depositions overall to be taken. (Declaration of Wilson ¶20.)

Finally, that settlement would be discouraged if different parties could obtain different ruling in different courts. (Declaration of Wilson ¶22.)

In opposition, Plaintiff Loza argues that the Actions, a mixture of class action and PAGA, involve different parties in interest, where the named Plaintiff and class are the parties in a class action, but the State is the real party in interest in the PAGA claim. Further, that, due to this, there is a lack of commonality between the actions.

Additionally, Plaintiff Loza argues a lack of evidence as to the convenience arguments set forth above and the coordination would prejudice Plaintiff Loza who filed these actions first.

Finally, Plaintiff Loza argues that the parties in the Loza Class Action and Loza PAGA Action have already agreed to mediation without coordination and that coordination at this point would discourage a global settlement.

The Court recognizes that “An employee suing under PAGA ‘does so as the proxy or agent of the state’s labor law enforcement agencies.’ [Citation.] Every PAGA claim is ‘a dispute between an employer and the state.’ [Citation.] . . . The ‘government entity on whose behalf the plaintiff files suit is always the real party in interest.’” (Kim v. Reins International California, Inc. (2020) 9 Cal.5th 73, 81.)

However, the Court also commonly adjudicates settlements of PAGA and class action cases together, noting a commonality between the separate claims under the class action and the violations for which the PAGA penalties are sought. Here, the Loza Class Action presents claims for various Labor Code violations and the Loza PAGA Action seeks civil penalties for what appears to be the same Labor Code violations. The Parcasio PAGA Action appears to add a violation for failure to keep complete or accurate payroll records. The Hutton Class Action adds an unfair competition claim.

As such, the Court finds sufficient common questions of fact and law predominating the litigation.

While the Court agrees that Petitioner has failed to quantify the witnesses, documentary evidence and law and motion work, the Court notes that, at least as to PMK depositions of Defendants, it would be more efficient to coordinate these actions and therefore coordinate such discovery. The Court’s experience with these cases is that, even for a lower number of affected putative class members or aggrieved employees, wage statements spanning multiple years alone will generate significant documentary evidence.

Further, a coordinated action would reduce law and motion volume and eliminate the risk of inconsistent rulings as to discovery and approval of settlement.

Finally, the Court’s experience with parallel wage and hour class actions and PAGA cases is that a coordinated action will encourage settlement, as it will provide assurance to Defendants that resolving the coordinated case resolves all claims against it.

As such, the Court finds coordination appropriate.

Coordination Site and Appellate Jurisdiction

The Petition seeks to deem Contra Costa County Superior Court as the appropriate court for this coordinated action.

California Rule of Court 3.530(b) provides the following relevant factors for a coordination motion judge to recommend the site of coordination proceedings: (1) the number of included actions in particular locations; (2) whether the litigation is at an advanced stage in a particular court; (3) the efficient use of court facilities and judicial resources; (4) the locations of witnesses and evidence; (5) the convenience of the parties and witnesses; (6) the parties’ principal place of business; (7) the office locations of counsel for the parties; and (8) the ease of travel to and availability of accommodations in particular locations.

Petitioner notes that the Martinez-Wakefield Taylor Courthouse has been designated as the courthouse where complex cases are managed in the Superior Court of California County of Contra Costa. Further, that Fresno and Tulare lack dedicated complex litigation departments.

The opposition does not address this issue, except to note that the Parcasio PAGA Action (set in Contra Costa) is the latest filed case.

The Court sets Contra Costa County Superior Court for the site of coordination proceedings.

Further, the Court sets the First Appellate District as having appellate jurisdiction.

If no one requests oral argument, under Code of Civil Procedure section 1019.5(a) and California Rules of Court, rule 3.1312(a), no further written order is necessary. The minute order adopting this tentative ruling will become the order of the court and service by the clerk will constitute notice of the order. Court reporters are usually not available for law and motion matters in the civil division. The parties and counsel must provide their own reporter if they want a transcript of the proceedings.

The Tentative Rulings for Friday, July 24, 2026 , are: